

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zev Levavi	Team: Squad #05	CCRB Case #: 201400320	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 01/09/2014 9:14 PM	Location of Incident: Opposite 80 Rutgers Slip; Rutgers Street and Madison Avenue.	18 Mo. SOL 7/9/2015	Precinct: 07
Date/Time CV Reported Fri, 01/10/2014 5:20 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 01/10/2014 5:20 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sandro Chiarlitti	03356	946858	007 PCT
2. SGT Joseph Imperatrice	03504	940282	007 PCT
3. POM Carlos Delgado	24694	943149	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Joseph Imperatrice	Abuse: Sgt. Joseph Imperatrice authorized a stop of the car in which § 87(2)(b) was an occupant at Rutgers Street and Madison Avenue.	A . Substantiated
B . SGT Joseph Imperatrice	Abuse: Sgt. Joseph Imperatrice stopped § 87(2)(b) opposite 80 Rutgers Slip.	B . Unsubstantiated
C . SGT Joseph Imperatrice	Abuse: Sgt. Joseph Imperatrice frisked § 87(2)(b) opposite 80 Rutgers Slip.	C . Substantiated
D . SGT Joseph Imperatrice	Abuse: Sgt. Joseph Imperatrice searched § 87(2)(b) opposite 80 Rutgers Slip.	D . Unsubstantiated
E . POM Sandro Chiarlitti	Force: PO Sandro Chiarlitti used physical force against § 87(2)(b) opposite 80 Rutgers Slip.	E . Unsubstantiated
F . POM Carlos Delgado	Abuse: PO Carlos Delgado frisked § 87(2)(b) at Rutgers Street and Madison Avenue.	F . Unsubstantiated
G . POM Carlos Delgado	Abuse: PO Carlos Delgado searched § 87(2)(b) at Rutgers Street and Madison Avenue.	G . Unsubstantiated
H . POM Carlos Delgado	Abuse: PO Carlos Delgado searched the car in which § 87(2)(b) was an occupant at Rutgers Street and Madison Avenue.	H . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB in person on January 10, 2014, on behalf of himself and his aunt, § 87(2)(b) (encl. 6A-B).

At approximately 9:16 p.m. on January 9, 2014, § 87(2)(b) was arrested in the vicinity of 80 Rutgers Slip § 87(2)(b). PO Sandro Chiarlitti of the 7th Precinct was the arresting officer. Sgt. Joseph Imperatrice and PO Carlos Delgado, both from the 7th Precinct, were present as well. The following allegations resulted:

Allegation A – Abuse of Authority: Sgt. Joseph Imperatrice authorized a stop of the car in which § 87(2)(b) was an occupant at Rutgers Street and Madison Avenue.

§ 87(2)(g) Therefore, it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Abuse of Authority: Sgt. Joseph Imperatrice stopped § 87(2)(b) opposite 80 Rutgers Slip.

§ 87(2)(g) Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: Sgt. Joseph Imperatrice frisked § 87(2)(b) opposite 80 Rutgers Slip.

§ 87(2)(g) Therefore, it is recommended that **Allegation C** be closed as **substantiated**.

Allegation D – Abuse of Authority: Sgt. Joseph Imperatrice searched § 87(2)(b) opposite 80 Rutgers Slip.

§ 87(2)(g) Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E – Force: PO Sandro Chiarlitti used physical force against § 87(2)(b) opposite 80 Rutgers Slip.

§ 87(2)(g) Therefore, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F – Abuse of Authority: PO Carlos Delgado frisked § 87(2)(b) at Rutgers Street and Madison Avenue.

Allegation G – Abuse of Authority: PO Carlos Delgado searched § 87(2)(b) at Rutgers Street and Madison Avenue.

Allegation H – Abuse of Authority: PO Carlos Delgado searched the car in which § 87(2)(b) was an occupant at Rutgers Street and Madison Avenue.

§ 87(2)(g) Therefore, it is recommended that **Allegations F and G** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

This case was ineligible for mediation because § 87(2)(b) was arrested as a result of the incident.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- A Hispanic male who is § 87(2)(b), with brown hair and brown eyes, § 87(2)(b) was § 87(2)(b) at the time of incident.

§ 87(2)(a) PHL §18(6)

CCRB Statement:

§ 87(2)(b) was interviewed at the CCRB on January 10, 2014 (encl. 7A-C).

Shortly after 9:00 p.m. on January 9, 2014, § 87(2)(b) returned home from work with his girlfriend (name not specified) in her car. § 87(2)(b) lives at § 87(2)(b). As he parked her car to the rear of his apartment building, § 87(2)(b) noticed his aunt, § 87(2)(b) was parked in her gray 2013 Honda Accord Sport on Rutgers Slip.

§ 87(2)(b) and his girlfriend met his mother (name not specified) in the back of their apartment building, where § 87(2)(b)'s mother told him that § 87(2)(b) had forgotten her cell phone. § 87(2)(b) said he would give it to her, and his mother then handed him § 87(2)(b)'s cell phone; a white Samsung Galaxy S3 with a silver case. § 87(2)(b) walked north towards § 87(2)(b) to catch § 87(2)(b) at the top of the block. He saw § 87(2)(b) exit her vehicle and start to walk towards the rear of § 87(2)(b) so he called out to her that he had her cell phone. § 87(2)(b) returned to her vehicle and § 87(2)(b) continued walking in the same direction.

§ 87(2)(b) turned the corner onto Rutgers Slip and observed an unmarked silver Crown Victoria driving down § 87(2)(b) in the direction of Allen Street. The vehicle drove by him slowly and § 87(2)(b) saw that the driver, identified by the investigation as PO Carlos Delgado of the 7th Precinct, was looking at him intently through his window. § 87(2)(b) also saw two plainclothes officers, identified by the investigation as Sgt. Joseph Imperatrice and PO Sandro Chiarlitti from the 7th Precinct, in the back of the vehicle. § 87(2)(b) also noted that there were

lights on the inside of the rear windshield. § 87(2)(b) assumed that they were detectives based on the above.

§ 87(2)(b) continued walking until he reached the middle of Rutgers Slip, where he stopped to wait for ###. ### pulled up in her car and § 87(2)(b) handed her the cell phone through the front passenger side window. The entire interaction lasted approximately two seconds, after which the unmarked vehicle pulled up approximately 50 to 100 feet behind § 87(2)(b)'s vehicle as she was pulling out.

§ 87(2)(b) continued walking up Rutgers Slip with his back to the unmarked vehicle when he heard the doors open. § 87(2)(b) looked back and saw Sgt. Imperatrice and PO Chiarlitti exiting the backseat. Both officers yelled "Stop!" but § 87(2)(b) did not know if they were speaking to him, so he continued walking. Sgt. Imperatrice and PO Chiarlitti then yelled "Stop! Police!" and § 87(2)(b) looked back and saw them pulling their shields out from underneath their sweaters. At that point, § 87(2)(b) knew that the officers were speaking to him, but he continued walking away from them because he did not know why they wanted him to stop. § 87(2)(b) walked approximately 10 more feet before he heard Sgt. Imperatrice and PO Chiarlitti running behind him, at which point he stopped.

§ 87(2)(b) stopped and turned around, directly across the street from § 87(2)(b) and in front of a playground with a black fence around it. When Sgt. Imperatrice and PO Chiarlitti reached § 87(2)(b) they immediately put his back up against the playground fence. § 87(2)(b) put his hands up and one of the officers, possibly both, then patted down the outside of § 87(2)(b)'s clothing and searched in § 87(2)(b)'s pants pockets and jacket pockets. § 87(2)(b) was wearing a green windbreaker, a button down shirt, and cargo pants. § 87(2)(b) had his money holder in one of his back pants pockets and his keys in one of his front pants pockets. There was nothing else on § 87(2)(b)'s person or in any of his other pockets.

As they searched him, Sgt. Imperatrice and PO Chiarlitti asked § 87(2)(b) who was in the car and what he was doing in the area. § 87(2)(b) told the officers that he did not consent to the search of his person, the stop was ridiculous, and he had not done anything wrong. § 87(2)(b) was upset, but did not raise his voice when he was talking to Sgt. Imperatrice and PO Chiarlitti.

§ 87(2)(b) lowered his hands when he spoke to the officers, and PO Chiarlitti got angry when § 87(2)(b) said he did not consent to the search. Sgt. Imperatrice yelled at him to put his hands up and § 87(2)(b) said "Alright, my hands are up." Sgt. Imperatrice grabbed § 87(2)(b) wrist and pushed it against the fence.

§ 87(2)(b) grabbed the fence with the hand Sgt. Imperatrice had pushed up against the fence. PO Chiarlitti, who was standing to the left of § 87(2)(b) uppercut § 87(2)(b) in the jaw with a closed fist, on the left side of his face. § 87(2)(b) denied that he physically resisted the officers in any way, and that the officers did not attempt to handcuff him prior to being struck in the face. § 87(2)(b) denied that he struck either Sgt. Imperatrice or PO Chiarlitti at any point.

§ 87(2)(b) saw white for a few seconds after he was punched. When he regained his bearings, he was slumped forward near a bench on the sidewalk, and Sgt. Imperatrice and PO Chiarlitti were holding him up by his arms. Both officers then put § 87(2)(b) face down on the dirt near the bench and handcuffed him. After he was handcuffed, one of the officers removed his money

holder and his keys from his pockets. The officer searched through § 87(2)(b) wallet and took out his identification.

Sgt. Imperatrice and PO Chiarlitti then lifted § 87(2)(b) up by his arms and sat him down on the bench nearby. After approximately 10 minutes, PO Delgado pulled up in the unmarked vehicle. Sgt. Imperatrice and PO Chiarlitti placed § 87(2)(b) in the back seat of the vehicle and transported him to the 7th Precinct Stationhouse.

Inside the stationhouse, § 87(2)(b) was permitted to speak with his mother, who informed him that § 87(2)(b) had been stopped further down the street and her car had been searched.

Victim: § 87(2)(b)

- *A Hispanic female § 87(2)(b), with black hair and black eyes, § 87(2)(b) was § 87(2)(b) at the time of incident.*

CCRB Statement:

§ 87(2)(b) was interviewed at the CCRB on January 30, 2014 (encl. 8A-E).

Shortly after 9:00 p.m. on January 9, 2014, § 87(2)(b) walked towards her grey 2013 Honda Accord which was parked on Rutgers Slip, in Manhattan. She had just been visiting family who lived in the area. As she entered the car she recalled that she had left her phone inside of her relative's residence. She exited her car and started to walk towards 80 Rutgers Slip.

She observed § 87(2)(b) walking towards her with her phone in his hand. Instead of meeting § 87(2)(b) she turned around and walked back towards her car. She entered and drove to the corner of Rutgers Slip and § 87(2)(b) to meet § 87(2)(b). § 87(2)(b) extended his right arm into her front passenger window and provided § 87(2)(b) with her cell phone. § 87(2)(b) placed her phone on her front passenger seat. § 87(2)(b) then briskly walked back towards 80 Rutgers Slip and § 87(2)(b) continued driving onto Rutgers Street, a two-lane street. § 87(2)(b) waited at the red light, and looked back and did not observe any additional vehicle behind her.

§ 87(2)(b) made a right onto Madison Avenue and observed an unmarked black Lincoln behind her. § 87(2)(b) moved aside, but rather than driving past § 87(2)(b) the unmarked car turned on its lights and parked. § 87(2)(b) then parked her car. PO Delgado, the only occupant of the unmarked vehicle, exited and walked towards § 87(2)(b)'s car.

§ 87(2)(b) informed PO Delgado that she did not speak English, and requested to know if she had committed any infractions. In Spanish, PO Delgado requested § 87(2)(b)'s vehicle documentation - driver's license, registration, and insurance cards. § 87(2)(b) complied with the request, and requested the reason for the stop. PO Delgado took § 87(2)(b)'s vehicle documentation and walked back towards the unmarked vehicle.

After briefly speaking on his radio, PO Delgado returned to § 87(2)(b)'s car and asked about the item § 87(2)(b) had handed her. § 87(2)(b) informed PO Delgado that § 87(2)(b) had provided her phone, because she had left it in his apartment. PO Delgado then asked § 87(2)(b) twice if she was sure that § 87(2)(b) did not hand her a gun or any drugs, and § 87(2)(b) responded that he had not both times.

PO Delgado then informed her that he would be checking her car and § 87(2)(b) informed PO Delgado that she did not have anything and he could check her car if he wanted to. PO Delgado instructed § 87(2)(b) to step out of her car and she complied. PO Delgado patted down § 87(2)(b)'s black coat and placed his hands inside of the two outer pockets. He removed two dollars and a store receipt from her pockets. He asked § 87(2)(b) if she had any pockets inside of her coat and she opened her coat to show that there were no interior pockets. PO Delgado then instructed her to go towards the front of her car. § 87(2)(b) complied and stood in the front of her car with her back facing her car and PO Delgado.

§ 87(2)(b) was unable to observe anything behind her, but heard PO Delgado's footsteps and the opening and closing of her four car doors. § 87(2)(b) was unsure what parts of her vehicle PO Delgado searched and she did not specify whether any objects were disturbed when she returned to the car. After approximately three to four minutes, PO Delgado handed § 87(2)(b) her vehicle documentation gave her permission to leave. § 87(2)(b) drove home to Brooklyn and PO Delgado made a U-turn and drove back towards Rutgers Slip.

Later that evening, § 87(2)(b) went to the 7th Precinct stationhouse with § 87(2)(b)'s mother. Upon their arrival, PO Chiarlitti recognized § 87(2)(b) as the individual in the car, but § 87(2)(b) had never seen him prior to or during the incident. PO Chiarlitti spoke to § 87(2)(b)'s mother in English. § 87(2)(b) was unable to understand the entire conversation, but heard PO Chiarlitti indicate that § 87(2)(b) was agitated and refused to allow the officers to check him. In addition, the officer said that § 87(2)(b) made a forward motion with his body, and they had to hit him.

NYPD Statement(s):

Subject Officer: PO SANDRO CHIARLITTI

- A white male § 87(2)(b), with brown hair and brown eyes, PO Sandro Chiarlitti was § 87(2)(b) at the time of incident.
- PO Chiarlitti worked from 5:30 p.m. on January 9, 2014 to 2:05 a.m. on January 10, 2014 and was dressed in plainclothes. He was assigned to an Anti-Crime team and partnered with PO Carlos Delgado and Sgt. Joseph Imperatrice. They were assigned to an unmarked blue Ford Crown Victoria, § 87(2)(e), § 87(2)(f)

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

No other individual was stopped, frisked or questioned, and PO Chiarlitti explained the reason for the stop. The following force was used against § 87(2)(b) hands on suspect, suspect on ground, and handcuffing suspect. § 87(2)(b) § 87(2)(b) and he was not issued any summonses (encl. 9A).

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Memo Book

At 9:16 p.m., one individual under arrest opposite of 80 Rutgers Slip, New York, NY 10002. PO Chiarlitti observed § 87(2)(b) reach into a parked vehicle's passenger's side window in what appeared to be a hand-to-hand drug transaction. The vehicle left and § 87(2)(b) attempted to walk, and then run, away. § 87(2)(b) refused to comply with order to keep his hands at his side and grabbed onto a fence and stated "I don't have to fucking listen to you." § 87(2)(b) resisted arrest by flailing his arms and refusing to put his arms behind his back. § 87(2)(b) was transported to the 7th Precinct (encl. 9E-G).

CCRB Statement:

PO Chiarlitti was interviewed at the CCRB on May 22, 2014 (encl. 9H-J).

PO Chiarlitti was on routine patrol with PO Delgado, who was driving, and Sgt. Imperatrice, who was in the front passenger's seat, in the vicinity of 80 Rutgers Slip, in Manhattan. PO Chiarlitti was seated in back of the vehicle. It was dark outside, but the area was well lit by street lamps. The location at 80 Rutgers Slip and the surrounding area is a drug prone location.

While driving down § 87(2)(b) PO Chiarlitti observed § 87(2)(b) approximately 20 feet away standing on the corner and looking around, specifically over his shoulder. PO Chiarlitti did not observe anything in § 87(2)(b)'s hands nor did he observe any other civilians in the area.

PO Delgado drove to South Street and turned onto Rutgers Slip, where they observed § 87(2)(b) leaning into the passenger's side window of a parked vehicle. The officers' vehicle was approximately 20 feet away and directly behind the parked vehicle when PO Chiarlitti made this observation. PO Chiarlitti could see through the rear windshield of the vehicle, but he did not recall whether the interior lights were on or whether the vehicle had any tints. The vehicle was running and the brake lights were on.

PO Chiarlitti observed § 87(2)(b) reaching his right hand over the passenger seat towards the driver. PO Chiarlitti did not observe anything in § 87(2)(b)'s hand and he could not tell if § 87(2)(b) exchanged any object, including money, with the driver. PO Chiarlitti believed that the driver was the only individual inside the vehicle. PO Chiarlitti did not see anything in § 87(2)(b)'s hand when he removed it from the vehicle. When § 87(2)(b) took his hand out of the window, both parties dispersed immediately with no further interaction. Based upon these observations, the officers believed § 87(2)(b) had just engaged in a hand-to-hand drug transaction, and they decided to initiate a stop of § 87(2)(b) and the driver of the vehicle and question them regarding the nature of their interaction. PO Chiarlitti said that he and Sgt. Imperatrice would stop § 87(2)(b) and PO Delgado would stop the driver of the vehicle.

As PO Delgado pulled up behind the parked vehicle it pulled away and § 87(2)(b) walked in the opposite direction. PO Chiarlitti did not recall whether the vehicle pulled away at a high rate of speed or whether the driver committed any traffic violations.

PO Chiarlitti and Sgt. Imperatrice exited their vehicle and ordered § 87(2)(b) to stop. He looked back and then began to jog away from the officers. PO Chiarlitti and Sgt. Imperatrice jogged after § 87(2)(b) and ordered him to stop a second time. § 87(2)(b) reached the corner of Rutgers Slip and stopped in front of a metal gate directly across from 80 Rutgers Slip. PO Chiarlitti told § 87(2)(b) to remain calm and that they were just investigating what they believed to be a drug transaction. He added that if everything checked out, the officers were going to send § 87(2)(b) on his way. § 87(2)(b) became agitated and irate, started cursing, and stated, "What the fuck are you stopping me for. I don't have to fucking listen to you guys. This is fucking bullshit."

PO Chiarlitti then frisked the outside of § 87(2)(b)'s pants pockets for their safety and to make sure he was not in possession of any weapons. PO Chiarlitti frisked § 87(2)(b) based on his profane statements and agitated demeanor. He observed bulges in both of § 87(2)(b)'s front pants pockets, but could not describe the size or shape of the bulges, and did not know if the bulges were weapons. PO Chiarlitti denied that he reached into any of § 87(2)(b)'s pockets and did not recall whether Sgt. Imperatrice went into any of § 87(2)(b)'s pockets.

§ 87(2)(b) remained agitated while he was being frisked and he continued to use profanity towards PO Chiarlitti and Sgt. Imperatrice. § 87(2)(b) then grabbed onto the metal fence behind him with both hands. PO Chiarlitti ordered § 87(2)(b) to keep his hands at his sides so they were within view three times. § 87(2)(b) did not comply with these orders and PO Chiarlitti grabbed § 87(2)(b)'s hands to lower them from the fence.

§ 87(2)(b) pulled his hands away, raised both of his fists towards his chest area in a fighting stance, and lunged toward PO Chiarlitti while saying "I don't have to fucking listen to you." § 87(2)(b) lunged and took him within an inch of PO Chiarlitti, who took one step backward and punched § 87(2)(b) in the right side of his face, near his cheek. PO Chiarlitti punched § 87(2)(b) because based on § 87(2)(b)'s stance and demeanor, he believed § 87(2)(b) was preparing to strike him, and that the best way to prevent that was to punch him.

§ 87(2)(b) lowered his head in reaction to the punch while still leaning forward in PO Chiarlitti's direction. PO Chiarlitti and Sgt. Imperatrice then took § 87(2)(b) down to the ground by his arms to handcuff him. PO Chiarlitti and Sgt. Imperatrice ordered § 87(2)(b) to put his hand behind his back, but § 87(2)(b) resisted by tucking his arms under his chest. When PO Chiarlitti and Sgt. Imperatrice tried to pull § 87(2)(b) hands out from underneath his chest, § 87(2)(b) began flailing his arms and tensed them so the officers could not place them behind his back. After a brief struggle, PO Chiarlitti and Sgt. Imperatrice overcame § 87(2)(b)'s resistance by pulling his arms behind his back and then handcuffed him. No drugs or weapons were recovered from § 87(2)(b).

After he was placed in handcuffs, PO Chiarlitti and Sgt. Imperatrice obtained his identification and ran it for warrants. The warrant check revealed an outstanding warrant for an open container.

There were no additional factors, other than those noted on the stop and frisk report that led to § 87(2)(b)'s stop. Aside from § 87(2)(b)'s refusal to comply with officers' orders, there were no additional factors that resulted in the frisk.

PO Chiarlitti and Sgt. Imperatrice called PO Delgado and told him to come back so they could transport § 87(2)(b) to the 7th Precinct stationhouse. PO Delgado returned and reported that no drugs or weapons were recovered from the vehicle he stopped. PO Delgado did not describe his interaction with the driver of the vehicle. § 87(2)(b) was then transported to the stationhouse.

Subject Officer: SGT. JOSEPH IMPERATRICE

- *A white male § 87(2)(b), with brown hair and brown eyes, Sgt. Joseph Imperatrice was § 87(2)(b) at the time of incident.*
- *Sgt. Imperatrice worked from 5:26 p.m. on January 9, 2014 to 2:10 a.m. on January 10, 2014 and was dressed in plainclothes. He worked as the Anti-Crime supervisor and was partnered with PO Sandro Chiarlitti and PO Carlos Delgado. They were assigned to an unmarked blue Ford Crown Victoria, § 87(2)(e), § 87(2)(f)*

Memo Book

At 9:16 p.m., one individual under arrest by PO Chiarlitti, opposite of § 87(2)(b) for § 87(2)(b) (encl. 10B-C).

CCRB Statement

Sgt. Imperatrice was interviewed at the CCRB on May 30, 2014 (encl. 10D-F).

As the officers drove up South Street, they pulled directly behind a vehicle which was stopped in the middle of the street, approximately half a block away. The driver was the only occupant, and it appeared as though § 87(2)(b) was reaching his closed hand inside the vehicle to exchange possible contraband with the driver. The driver was leaning over towards the passenger side window to meet § 87(2)(b). Sgt. Imperatrice did not recall observing § 87(2)(b) prior to seeing him leaning through the window of the vehicle.

Sgt. Imperatrice could not see what § 87(2)(b) exchanged with the driver and could not describe the size, shape or color of the object. When § 87(2)(b) removed his hand and torso from the vehicle, Sgt. Imperatrice did not observe anything in either of his hands, nor did he observe § 87(2)(b) put his hands in his pockets or near his waistband. Sgt. Imperatrice believed that he had just observed a hand to hand drug transaction.

§ 87(2)(b) looked back at the officers and appeared to say something to the driver. § 87(2)(b) then walked briskly up the block away from the officers. The vehicle drove up the block, slowed at a stop sign at the intersection of § 87(2)(b) and Rutgers Slip, and drove away. Later in the interview, Sgt. Imperatrice specified that it appeared § 87(2)(b) mouthed to the driver that the cops were behind them and instructed the driver to drive away. Sgt. Imperatrice's suspicions were further raised by the driver's abrupt movement away from the officers and failure to come to full stop at the stop sign. Aside from failing to stop fully at the stop sign, Sgt. Imperatrice did not recall observing the driver do anything illegal.

Sgt. Imperatrice told PO Delgado that he and PO Chiarlitti were going to stop § 87(2)(b) and instructed PO Delgado to stop the vehicle for failure to stop at a stop sign and to investigate her interaction with § 87(2)(b). Sgt. Imperatrice and PO Chiarlitti exited the vehicle with their shields displayed. Their intent upon approaching § 87(2)(b) was to stop and question him about the interaction they just observed, as well as to ascertain his identity and his place of residence.

Sgt. Imperatrice and PO Chiarlitti followed § 87(2)(b) up Rutgers Slip and ordered him to stop twice, identifying themselves as police officers both times. § 87(2)(b) did not stop after either order and began to jog after the second order to stop. § 87(2)(b) then turned around and said "Fuck you, I don't have to stop." Sgt. Imperatrice and PO Chiarlitti ran up to § 87(2)(b) and bracketed him, with Sgt. Imperatrice to his left and PO Chiarlitti to his right. Before either officer could say anything, § 87(2)(b) protested and told the officers they had no right to stop him. § 87(2)(b) grabbed onto a fence behind him with both hands with his back to both officers. PO Chiarlitti instructed § 87(2)(b) to put his hands down twice, but § 87(2)(b) refused.

Sgt. Imperatrice asked § 87(2)(b) what he had been doing at the vehicle window. § 87(2)(b) responded that he was not doing anything and told Sgt. Imperatrice that he could search him because they would not find anything on him.

Sgt. Imperatrice frisked § 87(2)(b) for weapons. He did not feel any suspicious objects during the frisk, and did not put his hands inside § 87(2)(b)'s pockets. Sgt. Imperatrice believed that § 87(2)(b) was possibly in possession of weapons based on his combative demeanor and the fact that he was facing his body away from the officers when speaking to them. Sgt. Imperatrice did not observe any suspicious bulges on § 87(2)(b)'s person at any point during the interaction.

PO Chiarlitti instructed § 87(2)(b) to lower his hands a third time, but § 87(2)(b) still refused. At this point, approximately four to six civilians gathered on Rutgers Street, approximately half a block away, to see what was going on. Sgt. Imperatrice asked § 87(2)(b) to lower his hands again and told him that they just wanted to know where he was coming from and who was in the vehicle. § 87(2)(b) told the officers that the driver of the vehicle was his aunt, but he refused to remove his hands from the fence. PO Chiarlitti then removed § 87(2)(b)'s right hand from the gate, but § 87(2)(b) grabbed onto the fence immediately after his hand was released.

Sgt. Imperatrice instructed PO Chiarlitti to arrest § 87(2)(b) and issue him a summons for disorderly conduct. PO Chiarlitti asked § 87(2)(b) to lower his hands so he could handcuff him, and in response, § 87(2)(b) took his hands off the fence and turned to face PO Chiarlitti, with his back to Sgt. Imperatrice. § 87(2)(b) took a step forward and appeared to be preparing to strike PO Chiarlitti with his right hand, which was closed in a fist.

Sgt. Imperatrice grabbed § 87(2)(b)'s hands from behind to stop his forward momentum. § 87(2)(b) resisted by trying to pull his hands forward out of Sgt. Imperatrice's grasp. Sgt. Imperatrice overcame this resistance by pulling § 87(2)(b)'s hands behind his back and did not recall whether they took § 87(2)(b) to the ground to place him in handcuffs. Sgt. Imperatrice did not recall whether PO Chiarlitti made contact with § 87(2)(b) nor did he recall whether PO Chiarlitti struck § 87(2)(b) in the face. After § 87(2)(b) was securely in handcuffs, Sgt. Imperatrice and PO Chiarlitti sat him on a bench opposite the fence. Sgt. Imperatrice did not recall observing any injuries to § 87(2)(b) after his arrest.

Sgt. Imperatrice then radioed PO Delgado. PO Delgado informed Sgt. Imperatrice that the driver of the vehicle was polite and gave him permission to search her and her vehicle, but PO Delgado did not search her because she was a female. PO Delgado looked inside the car briefly, but he did not specify the extent to which he looked through the vehicle.

Sgt. Imperatrice instructed PO Delgado to release the driver go and return to Rutgers Slip. When they returned to the stationhouse, Sgt. Imperatrice learned that § 87(2)(b) had an open warrant, though he did not recall what the warrant was for.

Witness Officer: PO CARLOS DELGADO

- A Hispanic male § 87(2)(b), with black hair and hazel eyes, PO Carlos Delgado was § 87(2)(b) at the time of incident.
- PO Delgado worked from 5:30 p.m. on January 9, 2014 to 2:05 a.m. on January 10, 2014 and was dressed in plainclothes. He was assigned to an Anti-Crime team and partnered with PO Sandro Chiarlitti and Sgt. Joseph Imperatrice. They were assigned to an unmarked blue Ford Crown Victoria, § 87(2)(e), § 87(2)(f)

Memo Book

At 9:16 p.m., one individual under arrest by PO Chiarlitti at Rutgers and Cherry (encl. 11B-D).

CCRB Statement

PO Delgado was interviewed at the CCRB on May 23, 2014 (encl. 11E-G).

When PO Delgado reached the intersection of Rutgers Slip and § 87(2)(b) he observed a vehicle parked approximately half a block up on the right side of the street. § 87(2)(b) was leaning through the passenger's side window and appeared to be handing something to the driver with a closed hand. § 87(2)(b) was leaning into the vehicle for approximately one minute, after which time he removed his hand from the vehicle. The vehicle's interior lights were not on, and PO Delgado could not see into the vehicle or observe what § 87(2)(b) exchanged with the driver. He did not observe anything in § 87(2)(b) hand when he removed it from the vehicle. PO Delgado suspected that § 87(2)(b) had just engaged in a drug transaction.

When § 87(2)(b) and the driver observed the unmarked vehicle, § 87(2)(b) looked back towards the officers and started walking quickly in the opposite direction and the driver took off at a high rate of speed. PO Delgado could not say for certain whether the vehicle exceeded the speed limit when it drove away.

All three officers discussed whether § 87(2)(b) had just made a hand-to-hand drug transaction. Based on their observations and § 87(2)(b) furtive glance towards the officers, they decided to initiate a stop. PO Delgado did not recall whether Sgt. Imperatrice specifically instructed him to stop the vehicle or if he made that decision on his own. Sgt. Imperatrice and PO Chiarlitti approached § 87(2)(b) on foot, while PO Delgado followed the vehicle for approximately one block. PO Delgado then initiated a vehicle stop by activating his lights and sirens.

PO Delgado approached the driver's side window, identified himself as a police officer, and asked the driver, § 87(2)(b) for her license and registration. PO Delgado's intention upon requesting this documentation was to identify the person he was speaking with. § 87(2)(b) was not guilty of any summonsable or arrestable offenses when PO Delgado requested her paperwork.

§ 87(2)(b) provided these documents and PO Delgado asked her where she was coming from. § 87(2)(b) responded that she was coming from Rutgers Slip and § 87(2)(b) PO Delgado asked § 87(2)(b) if she knew the individual she had been talking to and she informed him that § 87(2)(b) was a family friend. PO Delgado asked § 87(2)(b) whether she purchased anything from § 87(2)(b). § 87(2)(b) hesitated before responding, which enhanced PO Delgado's suspicion that she and § 87(2)(b) had engaged in a drug transaction. Before § 87(2)(b) could answer, PO Delgado asked her whether there was anything he should know about in the vehicle.

§ 87(2)(b) said that she had nothing to hide and told PO Delgado that he had permission to search her person and her vehicle. PO Delgado did not ask § 87(2)(b) if he could search her vehicle or her person before she volunteered. § 87(2)(b) opened her door, and as she exited the vehicle, PO Delgado asked her to open her jacket for his safety, as he was alone. § 87(2)(b) complied and PO Delgado looked at § 87(2)(b)'s waistband to see if she had any bulges that looked like weapons. PO Delgado did not observe any suspicious bulges on § 87(2)(b)'s person. PO Delgado asked § 87(2)(b) if she had anything on her and § 87(2)(b) said that she did not. § 87(2)(b) then voluntarily removed all the objects from her jacket pockets and showed them to PO Delgado. PO Delgado did not make any contact with § 87(2)(b) nor did he reach his hands into any of her pockets.

PO Delgado escorted § 87(2)(b) to the rear bumper of her vehicle and returned to the front of § 87(2)(b)'s vehicle. PO Delgado opened the driver's side door and as he leaned in to check the lungeable areas for narcotics or a weapon, he received a call from Sgt. Imperatrice and PO Chiarlitti that they had an individual under arrest at Rutgers Slip and § 87(2)(b).

PO Delgado returned § 87(2)(b)'s paperwork and before he returned to his vehicle, he asked § 87(2)(b) what § 87(2)(b) had given her. § 87(2)(b) told PO Delgado that § 87(2)(b) had handed her cell phone to her. PO Delgado then drove back to the scene, where he picked up Sgt. Imperatrice and PO Chiarlitti and § 87(2)(b). PO Delgado did not observe any injuries on § 87(2)(b) person and he did not hear § 87(2)(b) complain of any injuries.

Medical Records

§ 87(2)(a) PHL §18(6)

Other Evidence

A search in Google Maps reflected that there is a traffic signal, not a stop sign, at the intersection of Rutgers Slip and § 87(2)(b). The image is date January of 2013 (encl. 1A).

Summons/Arrest for Incident and Disposition

- § 87(2)(b), [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of January 22, 2015 with regard to the incident (encl. 20).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 5).

Subject Officer(s) CCRB History

- Sgt. Imperatrice has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 2A-B).
- PO Chiarlitti has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 3).
- PO Delgado has been a member of the service for eight years and there are no substantiated allegations against him (encl. 4).

Conclusion

Identification of Subject Officer(s)

Sgt. Imperatrice generally matches § 87(2)(b)'s description of one of the two officers who arrested him. Although § 87(2)(b) was unable to specify which officer allegedly frisked and searched him, both Sgt. Imperatrice and PO Chiarlitti admitted to frisking him. Sgt. Imperatrice was the highest ranking officer at the scene and supervised the alleged stop, frisk, and search of

§ 87(2)(b) § 87(2)(g)

PO Delgado did not recall whether he initiated the vehicle stop on his own or whether Sgt. Imperatrice ordered him to do so. Sgt. Imperatrice stated that he instructed PO Delgado to conduct the vehicle stop. § 87(2)(g)

PO Chiarlitti admitted to punching § 87(2)(b) in the face. § 87(2)(g)

PO Delgado generally matches § 87(2)(b)'s description of the officer who allegedly frisked her, searched her, and searched her vehicle. PO Delgado admitted that he searched the lungeable areas of § 87(2)(b)'s vehicle and he was the only officer present during the vehicle stop. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A– Abuse of Authority: Sgt. Joseph Imperatrice authorized a stop of the car in which § 87(2)(b) was an occupant at Rutgers Slip and § 87(2)(b)

Sgt. Imperatrice instructed PO Delgado to stop § 87(2)(b) to investigate the suspected hand-to-hand drug transaction between § 87(2)(b) and § 87(2)(b)

According to Sgt. Imperatrice's, PO Chiarlitti's, and PO Delgado's statements, they briefly discussed their observations of § 87(2)(b) and § 87(2)(b) before Sgt. Imperatrice decided that he and PO Chiarlitti would stop § 87(2)(b) and PO Delgado would stop § 87(2)(b). Although PO Delgado did not recall whether he decided to stop § 87(2)(b) on his own or upon instructions from Sgt. Imperatrice, Sgt. Imperatrice said he instructed PO Delgado to stop § 87(2)(b) and he bears responsibility for the vehicle stop as the highest ranking officer at the scene.

Prior to the stop, Sgt. Imperatrice observed § 87(2)(b) reaching through the passenger side window of § 87(2)(b)'s vehicle with a closed hand in a drug prone location. § 87(2)(b) leaned toward § 87(2)(b) and it appeared as though § 87(2)(b) handed her something. Sgt. Imperatrice did not see the object § 87(2)(b) handed § 87(2)(b) and he could not describe it. Sgt. Imperatrice did not see § 87(2)(b) hand § 87(2)(b) anything, including money, and he did not see anything in § 87(2)(b)'s hands when he emerged from the vehicle. § 87(2)(b) did not put his hands in his pockets or inside his waistband. When § 87(2)(b) emerged from the vehicle, he looked back at the officers' vehicle and walked briskly in the opposite direction. PO Chiarlitti and PO Delgado corroborated these observations.

§ 87(2)(g)

Additionally, Sgt. Imperatrice stated that § 87(2)(b) rolled through a stop sign when she drove away from the scene, which further raised his suspicion. PO Delgado stated that § 87(2)(b) drove away at a "high rate of speed," but he could not say whether she violated the speed limit. PO Chiarlitti did not observe anything notable about the way § 87(2)(b) drove away from the scene and stated that the decision to stop § 87(2)(b) was based solely on the officers' observations of the suspected hand-to-hand transaction. § 87(2)(b) denied violating any traffic laws when she left the scene, and she was surprised when PO Delgado pulled her over on Madison Avenue.

A Google image search revealed that as of January 2013, there is a traffic light, not a stop sign, at the intersection of Rutgers Slip and § 87(2)(b) which invalidates Sgt. Imperatrice's claim that he observed § 87(2)(b) roll through a stop sign (encl. 1A). While PO Delgado's assertion that § 87(2)(b) drove away from the scene at a "high rate of speed" cannot be confirmed or denied as definitively, PO Delgado's inability to say whether § 87(2)(b) violated the speed limit and the fact that he did not issue § 87(2)(b) any traffic summonses undermines this claim. In fact, PO Delgado stated in his interview that at the time he stopped § 87(2)(b)'s vehicle, she was not guilty of any summonsable offenses, thus negating a traffic summons stop argument.

§ 87(2)(g)

In order to stop an individual, an officer must harbor reasonable suspicion that a person has committed, is committing, or is about to commit a crime: *People v. DeBour*, 40 N.Y.2d 210 (1976) [encl. AA-AK]. In order to determine whether an officer possessed reasonable suspicion, the totality of the circumstances must be evaluated: *People v. Loper*, 115 A.D.3d 875 (2nd Dept. 2014) [encl. BA-BC].

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as substantiated.

Allegation B – Abuse of Authority: Sgt. Joseph Imperatrice stopped § 87(2)(b) opposite 80 Rutgers Slip.

It is undisputed that Sgt. Joseph Imperatrice stopped § 87(2)(b) § 87(2)(g)

According to § 87(2)(b) he noticed the unmarked vehicle behind § 87(2)(b)'s vehicle after he handed her cell phone through the passenger side window. § 87(2)(b) then walked up Rutgers Slip towards § 87(2)(b) and upon hearing the doors of the unmarked vehicle open, he looked back and observed Sgt. Imperatrice and PO Chiarlitti exit. Sgt. Imperatrice and PO Chiarlitti both yelled "Stop!" in § 87(2)(b)'s direction, but § 87(2)(b) continued walking because he did not know whether the officers were speaking to him. Sgt. Imperatrice and PO Chiarlitti yelled stop a second time and identified themselves as police, at which point § 87(2)(b) knew they were speaking to him. However, § 87(2)(b) did not think they had reason to stop him so he continued walking, stopping only when he heard Sgt. Imperatrice and PO Chiarlitti running behind him.

According to Sgt. Imperatrice, § 87(2)(b) looked back at the officers while they were still in their vehicle. Upon exiting their vehicle, Sgt. Imperatrice and PO Chiarlitti ordered § 87(2)(b) to stop twice and § 87(2)(b) began to jog away from them after the second order. PO Chiarlitti stated that § 87(2)(b) looked back at him and Sgt. Imperatrice after the officers exited the vehicle. When they ordered him to stop, § 87(2)(b) began to jog away. PO Delgado stated that § 87(2)(b) looked back at the officers while they were still inside their vehicle and then walked quickly in the opposite direction. The handwritten stop and frisk report related to § 87(2)(b)'s stop does not specifically note flight or furtive movements as justification for his stop.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: Sgt. Joseph Imperatrice frisked § 87(2)(b) opposite 80 Rutgers Slip.

According to § 87(2)(b) he was frisked upon the officers' approach. According to both Sgt. Imperatrice and PO Chiarlitti, § 87(2)(b) aggressively refused to comply with multiple orders to put his hands down and repeatedly questioned their authority before he was frisked. According to PO Chiarlitti, § 87(2)(b) stated, "I don't have to fucking listen to you guys,"

According to Sgt. Imperatrice, § 87(2)(b) immediately told the officers that they had no right to stop him and grabbed onto a fence with both his hands, with his back to the officers. § 87(2)(b) refused to take his hands off the fence. Sgt. Imperatrice asked § 87(2)(b) about his interaction with § 87(2)(b) and § 87(2)(b) responded by offering the officers consent to search him. Sgt. Imperatrice suspected § 87(2)(b) might have been in possession of a weapon, based on his combative demeanor and because he had his back to the officers. However, Sgt. Imperatrice indicated that he did not observe any bulges on § 87(2)(b)'s person at any point.

§ 87(2)(g)

PO Chiarlitti said that he observed bulges on § 87(2)(b)'s person. PO Chiarlitti could not describe the shape or size of the bulges, nor could he say whether the bulges appeared to be weapons of any kind. § 87(2)(g)

§ 87(2)(b) denied having anything in his pockets that caused a bulge which could have been reasonably mistaken for a weapon. Sgt. Imperatrice denied observing any bulges on § 87(2)(b). § 87(2)(g)

An officer must have reasonable suspicion that he/she is in danger by virtue of the individual being armed in order to frisk that individual *People v. DeBour*, 40 N.Y.2d 201(1976), [encl. AA-AK].

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be **substantiated**.

Allegation D – Abuse of Authority: Sgt. Joseph Imperatrice searched § 87(2)(b) opposite 80 Rutgers Slip.

§ 87(2)(g)

According to § 87(2)(b) he was immediately patted down and searched. Sgt. Imperatrice admitted frisking § 87(2)(b) but denied searching § 87(2)(b) prior to arrest. According to Sgt. Imperatrice, although § 87(2)(b) consented to a search of his person, he only patted down the outside of his clothing. PO Chiarlitti denied that he reached inside any of § 87(2)(b)'s

pockets and did not recall whether Sgt. Imperatrice went into any of § 87(2)(b)'s pockets. According to the stop and frisk report, § 87(2)(b) was not searched.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E – Force: PO Sandro Chiarlitti used physical force against § 87(2)(b) opposite 80 Rutgers Slip.

PO Chiarlitti admitted to punching § 87(2)(b) in the face because he believed § 87(2)(b) was preparing to strike him. § 87(2)(g)

According to § 87(2)(b) his hands were up initially while he was being frisked. When he lowered his hands to protest the stop and frisk, Sgt. Imperatrice yelled at him to keep his hands up and then pushed § 87(2)(b)'s wrist against the fence. When § 87(2)(b) grabbed onto the fence, PO Chiarlitti was standing to his left and uppercut § 87(2)(b) on the left side of the face. In his statements to personnel at § 87(2)(b) two days after the incident, § 87(2)(b) complained of pain in his jaw due to being punched in the left side of his face. § 87(2)(b) said that he was assaulted. § 87(2)(a) PHL §18(6)

§ 87(2)(b)'s arrest report does not reflect that any force was used during the course of his arrest. According to PO Chiarlitti, after § 87(2)(b) refused to remove his hands from the fence, PO Chiarlitti grabbed § 87(2)(b)'s hands. § 87(2)(b) raised both of his fists to his chest in a fighting stance and lunged toward PO Chiarlitti while saying, "I don't have to fucking listen to you." In response, PO Chiarlitti took a step backward and punched § 87(2)(b) on the right side of his face. PO Chiarlitti and Sgt. Imperatrice then placed § 87(2)(b) in handcuffs.

Sgt. Imperatrice corroborated that § 87(2)(b) lunged at PO Chiarlitti, but he did not recall whether PO Chiarlitti punched § 87(2)(b) in the face. According to Sgt. Imperatrice, he stopped § 87(2)(b)'s forward momentum by grabbing his arms from behind, and he and PO Chiarlitti were eventually able to place § 87(2)(b) in handcuffs.

The circumstances leading up to PO Chiarlitti's use of force are unclear. PO Chiarlitti and Sgt. Imperatrice both stated that § 87(2)(b) made a forward motion towards PO Chiarlitti, in which case PO Chiarlitti may have been justified in stopping § 87(2)(b)'s physical advances by punching him in the face. However, § 87(2)(b) stated that PO Chiarlitti punched him while he was grabbing onto the fence.

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F – Abuse of Authority: PO Carlos Delgado frisked § 87(2)(b) at Rutgers Street and Madison Avenue.

Allegation G – Abuse of Authority: PO Carlos Delgado searched § 87(2)(b) at Rutgers Street and Madison Avenue.

Allegation H – Abuse of Authority: PO Carlos Delgado searched the car in which § 87(2)(b) was an occupant at Rutgers Street and Madison Avenue.

§ 87(2)(f)

According to § 87(2)(b) PO Delgado asked her whether § 87(2)(b) handed her any drugs or weapons opposite 80 Rutgers Slip and told her he was going check her car. § 87(2)(b) then told PO Delgado that he could check her vehicle. § 87(2)(b) indicated that when she was asked to step out of the vehicle, she was patted down by PO Delgado and that he removed two dollars and a store receipt from her pockets without her consent.

According to PO Delgado, when he asked § 87(2)(b) whether there was anything in her vehicle he should know about, § 87(2)(b) said she had nothing to hide and told PO Delgado he could search her vehicle and her person. PO Delgado denied asking § 87(2)(b) whether he could search her vehicle or her person before she offered consent. Furthermore, PO Delgado denied frisking or searching § 87(2)(b) when she exited the vehicle.

§ 87(2)(g)

Therefore, it is recommended that **Allegations F, G, and H** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(2)(g), § 87(4-b)

[REDACTED]

POD: 5

Investigator: _____ Zev Levavi _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date